

File No.: EXP202300409

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated November 29, 2023, and based on the following

FACTS

FIRST: On November 29, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202300409, in which it was agreed to uphold the claim for the exercise of rights made by the complainant against TELEFÓNICA MÓVILES ESPAÑA, S.A.U. (hereinafter, the respondent).

SECOND: The resolution now appealed was duly notified to the appellant on December 5, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a reconsideration appeal to this Spanish Agency for Data Protection, stating that the respondent has not provided all the requested information.

“...RECORDING OF THE CONTRACT OF THE PERSON WHO HAS IMPERSONATED MY IDENTITY.

- CONTRACT SIGNED BY THE PERSON WHO HAS IMPERSONATED MY IDENTITY AND DOCUMENTATION PROVIDED.

- ACKNOWLEDGMENT OF RECEIPT ON THE DAY OF INSTALLATION IN THE RESIDENCE AND ACKNOWLEDGMENT OF RECEIPT OF THE DELIVERY OF THE MOBILE TERMINALS IPHONE 11 AND OPPO A54F...”

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

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Response to the allegations presented

The reconsideration appeal has been forwarded to the respondent for any clarifications they may need to provide, and a reminder of compliance with the resolution has also been sent since the outcome of the resolution for non-compliance with the right was favorable.

III

Conclusion

In this reconsideration appeal, there is no contradiction between the resolution of this Agency, which was favorable, and what was requested by the complainant, now appellant.

In the resolution, it was concluded:

“...During the processing of this procedure, the respondent has responded to this Agency to address the requested right of access (...) but does not prove to have addressed the request, sending the required response to their request.

Since a copy of the necessary communication that must be directed to the complainant informing them about the decision made regarding the request for the exercise of rights is not attached, it is appropriate to uphold the claim that initiated this procedure...”

It should be noted regarding what the complainant wishes to receive as a right of access through this

reconsideration appeal since this right regulated in Article 15 of the GDPR includes the right of the data subject to “obtain from the data controller confirmation as to whether or not personal data concerning them are being processed and, if so, the right of access to the personal data,” as well as the information provided for in that provision. This means that they cannot obtain, via the right of access, personal data that exclusively concern another person.

Therefore, considering that this appeal does not raise any discrepancies with what was resolved by this Agency in the resolution of the claim, it is resolved to dismiss it.

In view of the cited provisions and others of general application,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the reconsideration appeal filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on November 29, 2023, in file EXP202300409.

SECOND: TO NOTIFY this resolution to A.A.A. and TELEFÓNICA MÓVILES ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of the aforementioned legal text.

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